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Travon Newman v. Home Depot U.S.A., Inc.

DEMURRER TO COMPLAINT

MOVING PARTY: Defendant Home Depot U.S.A., Inc.

RESPONDING PARTY(S): Plaintiff Travon Newman

STATEMENT OF MATERIAL FACTS AND/OR PROCEEDINGS:

This is a PAGA action. Plaintiff Travon Newman (Plaintiff) brings a sole cause of action for Civil Penalties (Lab. Code § 2698, et seq.) against his former employer Home Depot U.S.A., Inc. (Defendant). Plaintiff alleges missed meal periods, missed rest periods, and inaccurate wage statements.

Defendant now demurs to the complaint. Plaintiff opposed.

TENTATIVE RULING:

Defendant's Demurrer is OVERRULED.

Plaintiff may file a coordination petition seeking transfer of this action to Alameda County Superior Court. For all other purposes, this action is STAYED pending the disposition of the Franklin PAGA Action.

Defendant is ordered to give notice, unless waived.

DISCUSSION:

Demurrer to Complaint

I. Meet and Confer

The Declaration of attorney Carrie A. Gonell reflects the meet and confer requirements were met.

II. Judicial Notice

Defendant requests judicial notice of Exhibits A-E in its initial motion and Exhibits A-B in its reply. Pursuant to Defendant's request, the Court takes judicial notice of these exhibits.

III. Legal Standard

Code Civil Procedure section 430.10(c) expressly provides that a party may demur where "there is another cause of action pending between the same parties on the same cause of action." (People ex rel. Garamendi v. American Autoplan, Inc., (1993) 20 Cal.App.4th 760, 770.) The pendency of another action is classified as a plea in abatement and, as such, is "not favored." This disfavor is expressed in a number of rules: (1) The objection itself is strictly limited so that, whether raised by demurrer or answer, the defendant must show that the parties, the cause of action, and issues are identical and that the same evidence would support the judgment in each case. . . (2) demurrer will not be sustained if the complaint also shows that the former action is no longer pending. . . (3) even if objection is good demurrer should not be sustained without leave to amend and the action should not be dismissed." (California Union Ins. Co. v Trinity River Land Co. (1980) 105 Cal.App.3d 104, 108.)

In determining whether another action is pending between the same parties on the same cause of action, the facts in the two causes of action are compared to determine what primary right has been invaded. California follows the "primary right theory," which holds that every judicial action must involve the following elements: a primary right possessed by the plaintiff, and a corresponding primary duty devolving upon the defendant; a wrong done by the defendant that consisted of a breach of such primary right and duty; a remedial right in favor of the plaintiff, and a remedial duty resting on the defendant springing from this wrong; and the remedy or relief itself. Of these elements, the combined primary right, duty, and wrong constitute the cause of action. (Bush v Superior Court (1992) 10 Cal.App.4th 1374, 1384.)

IV. Analysis

Defendant demurs to the complaint on grounds that the complaint fails to sufficiently allege a cause of action and that this action should be stayed pending the disposition of current similar actions.

1. Pre-Filing PAGA Notice

Defendant demurs on the ground that Plaintiff's complaint does not state facts sufficient to constitute a cause of action under PAGA. (Code Civ. Proc., § 438, subd. (c)(1)(B).) PAGA has a pre-filing notice requirement and Defendant argues that Plaintiff's pre-filing notice was deficient.

PAGA authorizes employees to seek penalties against their employers for alleged violations of the Labor Code. (Lab. Code, § 2699, subd. (a).) Before filing a PAGA case in court, an employee must give written notice to both her employer and the Labor and Workforce Development Agency (LWDA). (§ 2699.3, subd. (a).) The pre-filing notice serves two purposes: one, afford the LWDA the "opportunity to decide whether to allocate scarce resources to an investigation, a decision better made with knowledge of the allegations an aggrieved employee is making and any basis for those allegations," and two, allow the employer to submit a response to the LWDA. (Williams v. Superior Court (2017) 3 Cal.5th 531, 545-546 (Williams).)

To these ends, the notice must state the “specific provisions of [the Labor] code alleged to have been violated, including the facts and theories to support the alleged violation.” (Lab. Code, § 2699.3, subd. (a)(1)(A).) The facts and theories in particular must be stated with enough information to enable the LWDA to “intelligently assess the seriousness of the alleged violations” and the employer to “determine what policies or practices are being complained of so as to know whether to fold or fight.” (Ibarra v. Chuy & Sons Labor, Inc. (2024) 102 Cal.App.5th 874, 881 [citing Brown v. Ralphs Grocery Co. (2018) 28 Cal.App.5th 824, 836].) Whereas a “string of legal conclusions” that “parrot[] the allegedly violated Labor Code provisions” might give sufficient notice of the legal rules allegedly violated, it does not give sufficient notice of the underlying “facts and theories.” (Brown, at p. 837.) Because sufficient notice is a “condition” of a PAGA claim, deficient notice is ground for an objection to the pleadings. (Id. at p. 835.)

Nevertheless, the pre-filing PAGA notice is not a certificate of merit or otherwise a statement of “preliminary proof” of the claims alleged. (Williams, supra, 3 Cal.5th at p. 546.) “[F]ew ‘facts and theories’ are needed to satisfy PAGA’s notice requirement.” (Rojas-Ciufuentes v. Superior Court (2020) 58 Cal.App.5th 1051, 1057.)

Here, Plaintiff alleges he gave written notice to the LWDA. (Compl. ¶123.) He does not attach the notice to his Complaint. The purported notice, of which Defendant requests the Court take judicial notice, is dated June 16, 2025. Plaintiff does not oppose Defendant’s request of the Court to take judicial notice of the notice letter; either notice of the fact it exists and notice of its contents. (Defendant’s RJN (July 27, 2026), Exh. A [hereafter cited as the “Notice”].)

Defendant argues Plaintiff’s Notice is deficient for two reasons.

First, it is a boilerplate template that Plaintiff’s counsel has used with only minor adjustments in 18 other PAGA cases. However, the issue is whether Plaintiff’s Notice is sufficient in this particular case. Its similarity to other notices used by Plaintiff’s counsel in other cases does not mean the Notice in this case is deficient. Defendant’s argument regarding opposing counsel’s corpus of LWDA filings is an argument best addressed by the LWDA; it bears little on the question of whether Plaintiff here gave sufficient notice. The Court does not consider here the purported letters sent by the LWDA to other law firms, or the purported data on Plaintiff’s counsel’s filings with the LWDA in other cases.

Second, Defendant argues that Plaintiff’s Notice lacks the “facts and theories” that underlie the alleged Labor Code violations. The Notice, Defendant argues, “is insufficient because he has not sufficiently alleged how he personally suffered any of the alleged Labor Code violations asserted in the notice or described how those violations occurred in the first place.” (Mot. at p. 8:19-21.) “The only “facts” about Plaintiff in the letter are that he “is an individual who was employed by Defendant[] in an hourly, non-exempt position as a Freight Associate from approximately November 1, 2024, through January 30, 2025.” (Mot. at p. 8:21-23.)

In the Notice, Plaintiff writes, among other things:

Defendants’ written policies failed to advise NEWMAN and the aggrieved employees of their legal rights to take meal periods in accordance with California law. Specifically, Defendants have a policy and/or practice of requiring NEWMAN and the aggrieved employees to take their meal periods after the fifth hour of work. Also, NEWMAN and the aggrieved employees were required to clock out for meal periods even though they continued to perform work with the full knowledge of their supervisors. Accordingly, NEWMAN and the aggrieved employees were not provided with legally mandated uninterrupted meal periods of at least thirty minutes pursuant to California law.

In addition, NEWMAN and the aggrieved employees did not execute valid on-duty meal period waivers that complied with California law. Therefore, NEWMAN and the aggrieved employees were not provided with an uninterrupted, duty-free meal period of at least thirty minutes.

Defendants also failed to advise NEWMAN and the aggrieved employees of their legal right to take a second meal period when they worked shifts of ten hours or more.

In addition, at time when NEWMAN and the aggrieved employees were not timely provided with a meal period, Defendants failed to pay them legally required premium wages. These failures result, in part, from policies and practices that lack adequate safeguards to ensure that employees are relieved of all duty for meal periods and are paid additional wages when meal periods are not provided.

(Notice at pp. 3-4.)

For brevity, additional allegations are not included. In the end, all examples give notice of the facts and theories that support Plaintiff's claims. While Defendant is certainly not wrong that Plaintiff could have stated more factual detail in his Notice, many of the facts omitted are facts equally available to Defendant as they are to Plaintiff, at least in theory, and are not necessary for the LWDA to have intelligently evaluated his claims. As a result, Plaintiff's Notice is sufficient.

Accordingly, Defendant's demurrer as to the sufficiency of the PAGA Notice is **OVERRULED**.

2. Defendant's Request for Stay

In addition to dismissal, Defendant seeks a stay of this action as there are other PAGA actions currently pending against Defendant.

A. The Other Current Actions [FN 1]

On March 21, 2025, Travis Franklin filed a putative class action against Defendant in Monterey County Superior Court, Case No. 25CV001483 (Franklin Class Action). (Gonell Decl. ¶11.) On April 25, 2025, Defendant timely removed the Franklin Class Action to the Northern District of California. (Gonell Decl. ¶11.) On September 2, 2025, Plaintiff filed a putative class action against Defendant in Los Angeles County Superior Court, LASC Case No. 25STCV25625 (Newman Class Action). (Gonell Decl. ¶12.) On October 9, 2025, Defendant removed the Newman Class Action to the Central District of California which was later transferred to the Northern District of California, where it was consolidated with the existing Franklin Class Action. (Gonell Decl. ¶12.)

On March 26, 2025, Travis Franklin filed a PAGA action against Defendant in Alameda County Superior Court, Case No. 25CV116810 (Franklin PAGA Action). (Gonell Decl. ¶6, Exh. D.) This action seeks to recover civil penalties on behalf of all of Defendant's California current and former non-exempt employees for violations of the Labor Code.

B. Abatement

Defendant argues that the Court should stay proceedings until the termination of the Franklin PAGA Action because the cases involve the same parties and the same claim.

Defendant argues that both the Franklin PAGA action and Plaintiff's current PAGA cases involve the same essential parties, the State of California and Defendant, as PAGA actions are brought on behalf of the state to enforce labor law, regardless of the individual plaintiff. (*Iskanian v. CLS Transp. Los Angeles (2014) LLC*, 59 Cal.4th 348, 386.) As California is the real party in interest, any PAGA case binds all affected employees and serves to protect their rights under state labor law. Since the Franklin PAGA Action already represents all allegedly aggrieved employees, including those in the instant case, the instant case appears redundant.

Furthermore, Defendant argues that the Franklin PAGA Action and the instant case involve identical representative PAGA claims, as both actions seek to enforce the same primary right: California's right to impose penalties on employers for Labor Code violations. Since PAGA claims are brought on behalf of the state, the rights asserted by each plaintiff are fundamentally

the same. (See *Howitson v. EvansHotels, LLC* (2022) 81 Cal.App.5th 475, 488.) The instant case, solely focused on a PAGA claim, is thus entirely encompassed by the Franklin PAGA Action, which also includes representative claims and the same representative rights under PAGA.

The Court finds that the parties in the instant case and the parties in the Franklin PAGA Action are identical because both cases involve PAGA claims and thus are brought on behalf of the State of California against Defendant. (Iskanian, supra, 59 Cal. 4th 348, 386.) When addressing whether two causes of action are identical, the Court compares the facts alleged in the two actions. The causes of action are identical if both causes of action allege invasion of the same primary right. (Bush, supra, 10 Cal.App.4th 1374, 1384.) A “primary right” is based on the harm suffered and not the particular theory of recovery asserted by the Plaintiff. (Bay Cities Paving & Grading, Inc. v. Lawyers’ Mutual Ins. Co. (1993) 5 Cal.4th 854, 860.)

The Franklin PAGA action arises out of Defendant’s failure to provide meal and rest periods, failure to pay wages, failure to provide wage statements, failure to indemnify, and unlawful business practices. (Gonell Decl. ¶6, Exh. D.) In the instant case, Plaintiff alleges a representative PAGA claim arising out of Plaintiff’s missed meal periods, missed rest periods, and inaccurate wage statements. (Compl. ¶¶ 8-18.) Thus, both cases allege the same harm based on Defendant’s failure to follow California labor law. While Plaintiff argues that the causes of action are distinguishable because different claims and different remedies are sought, the primary right of a cause of action is based on the harm suffered and not the particular theory of recovery. (Bush, supra, 10 Cal.App.4th 1374, 1384.)

Therefore, the Court Stays the action pending disposition of the Franklin PAGA Action.

C. Exclusive Concurrent Jurisdiction

As an alternative to a plea in abatement, the Court would stay the action pursuant to the exclusive concurrent jurisdiction doctrine.

The exclusive concurrent jurisdiction doctrine provides that a second-in-time action should be stayed even in the absence of absolute identity of parties and causes of action if doing so would avoid potentially conflicting results or a waste of judicial resources. (See *People ex rel. Garamendi v. Am. Autoplan, Inc.* (1993) 20 Cal. App. 4th 760, 769-70.)

Defendant argues that the instant case should be stayed under the doctrine of exclusive concurrent jurisdiction, this doctrine prevents conflicting results and judicial resource waste by giving priority to the first court to assume jurisdiction. Here, the Alameda County Superior Court handling the Franklin PAGA Action has the authority to resolve all PAGA-related claims and provide any relief that could be granted in the instant case. (*Huff v. Securitas Servs. USA, Inc.* (2018) 23 Cal.App.5th 745, 750.) Multiple courts addressing overlapping PAGA suits against Defendant could duplicate efforts and lead to inconsistent outcomes. Consequently, Defendant requests a stay of the instant case until the Franklin PAGA Action is resolved.

Plaintiff argues that Defendant’s concerns about inconsistent rulings and judicial waste are unfounded, as concurrent PAGA actions are commonly permitted. Plaintiff argues that “the Franklin PAGA action alleges suitable seating, regular rate, and expense reimbursement claims not asserted by Newman.” (Opp. at p. 5: 3-4.) While this may be the case, the Franklin PAGA Action entirely encompasses Plaintiff’s claims here. The resolution of the Franklin PAGA Action would resolve all PAGA-related claims and provide any relief that could be granted in the instant case.

Further, Plaintiff argues “a Judicial Council Coordination Proceeding is the superior method of adjudicating overlapping PAGA claims. The California Supreme Court has approved of the use of Code of Civil Procedure section 404.1 to adjudicate overlapping PAGA actions in a single proceeding.” (Opp. at p. 5:5-7.) Plaintiff indicates that he “will be filing a coordination petition in the near future so that the overlapping PAGA cases are handled in the same forum.” (Opp. at p. 5:15-16.) This request is not unreasonable. Indeed, if granted, transfer and consolidation with the Franklin PAGA Action would relieve this Court’s concerns over the duplication of efforts and conflicting results. To that end, Plaintiff may file a coordination petition seeking transfer of this action to Alameda County Superior Court.

D. Discretionary Stay

In the end, the Court would still elect to stay the proceedings pursuant to the Court's inherent power.

“'[A] court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.' (People v. Bell (1984) 159 Cal.App.3d 323, 329.) As the Court in Landis v. North American Co. (1936) 299 U.S. 248, 254, explained, 'the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.' (OTO, L.L.C. v. Kho (2019) 8 Cal.5th 111, 141; see also Frieberg v. City of Mission Viejo (1995) 33 Cal.App.4th 1481, 1489 ["Trial courts generally have the inherent power to stay proceedings in the interests of justice and to promote judicial efficiency."].)

Under the totality of the circumstances, a stay of the entire case is warranted. Plaintiff's instant PAGA action appears entirely duplicative of the Franklin PAGA Action. At the very least, a stay will further judicial economy as it will avoid potentially unnecessary discovery and motion practice before this Court.

As the appropriate action is to stay the case pending the Franklin PAGA Action, the Court does not address sufficiency of the allegations in the operative complaint at this time.

IT IS SO ORDERED.

Dated: August 28, 2026 _____

Randolph M. Hammock

Judge of the Superior Court

FN 1 - It must be first noted that no party in this action somehow saw fit to formally file a Notice of Related Case ("NORC") in this case. It is clear to this Court that such a NORC should have been filed in all of these potential related cases. See, e.g., Judge Randolph M. Hammock, To Relate or Not to Relate (Advocate, June 2022); see also, C.R.C., rule 3.300) This will be discussed in more length at the hearing on the request for stay.